



HUMAN RIGHTS TRIBUNAL OF ONTARIO

B E T W E E N:

German McKenzie

Applicant

-and-

Ana Isla

Respondent

DECISION

Adjudicator: Ken Bhattacharjee

Date: October 9, 2012

File Number: 2012-11281-I

Citation: 2012 HRTO 1908

Indexed as: McKenzie v. Isla

APPEARANCES

German McKenzie, Applicant	)))	Self-represented
Ana Isla, Respondent	)))	Self-represented
Brock University, Proposed Intervenor	)))	Brenda Bowlby, Counsel

INTRODUCTION

[1] The applicant filed an Application under s. 34 of the *Human Rights Code*, R.S.O. 1990, c. H.19, as amended (the “Code”), which alleged that the respondent discriminated against him with respect to employment because of his creed. The purpose of this Decision is to decide whether the Application should be dismissed on a preliminary basis because it has no reasonable prospect of success. A summary hearing was held where the parties were afforded the opportunity to make oral submissions on this issue.

BACKGROUND

[2] The events at issue in this case occurred at Brock University (the “University”) in St. Catharines, and centre around a program called Solidarity Experiences Abroad (“SEA”), which offers students the opportunity to participate in volunteer placements working with the poor in developing countries.

[3] Pursuant to an Agreement between the University and the Roman Catholic Diocese of St. Catharines, the Diocese is assigned an office on campus, which is run by a Roman Catholic Chaplain. The Chaplain is appointed by the Bishop of St. Catharines and approved by the University. The Diocese’s activities on campus include recruiting students for, and administering, the SEA program. The SEA program has religious/spiritual components, but non-religious students are not barred from participating in it.

[4] The Roman Catholic Chaplain at the University is Br. Raoul Masseur. However, between January and September 2010, the applicant was the acting Chaplain, and since October 2010, he has continued to work as a volunteer in the Diocese’s office on campus. The applicant administered the SEA program during his tenure as acting Chaplain, and continues to support the program.

[5] The respondent, who is a professor in the Department of Sociology and the

Centre for Women and Gender Studies of the University, was and is an active opponent of the SEA program. In late 2011 and early 2012, she led a campaign to pressure the University to end its relationship with the program. According to the respondent, the SEA program has ties to “far-right”, “cult like” Catholic organizations, which actively oppose abortion rights, women’s rights, gay and lesbian rights, liberation theology, and other progressive causes. She also states that there are documented cases where leaders or members of these organizations have sexually, psychologically and/or physically abused young people. She believes that the University, which is a publicly-funded, secular organization, should only support volunteer abroad programs which are secular.

[6] On November 30, 2011, the respondent proposed a motion at a faculty meeting in the Department of Sociology, which stated:

Sociology moves that Brock University cease the Solidarity Experience Abroad Trips to Latin America and remove all ties to local partners of these trips (i.e. the Sodalit Family, Sodality of Christian Life, Solidarity in Action, Christian Life Movement, etc.) because: The Sodalit Family have been documented to engage in psychological and physical abuse against youth. Brock students are embedded in this community while away on trips to Latin America as work placements, cultural activities, and sleeping arrangements occur on sites operated or owned by the Sodalit Family linked to Catholic Chaplains at Brock (i.e. Raoul Masseur and German Mackenzie).

[7] In an explanatory letter supporting her motion, the respondent also stated:

In Canada, since 2003, Sodality of Christian Life lay-member Raoul Masseur, and former Superior General of the Sodality of Christian Life in Peru German Mackenzie have operated the Catholic Chaplaincy of the Faith and Life Centre (ex-Campus Ministries) at Brock University. They have used academic programs... and, more generally, public university resources (including institutional credibility) in order to recruit students for “Solidarity Experience Abroad” trips and to grow their movement in Canada and Latin America.

[8] The Department of Sociology subsequently adopted a motion, which stated:

Whereas there have been documented cases of physical and

psychological abuse, classism, sexism, racism and homophobia in activities related to Solidarity Experiences Abroad to Latin America, the Department of Sociology urges Brock University to cease support for the Solidarity Experiences Abroad trips to Latin America and remove all ties to local partners of these trips (i.e. the Sodalit Family, Sodality of Christian Life, Solidarity in Action, Christian Life Movement, etc.)

The Centre for Women and Gender Studies adopted a similar motion. The Brock University Faculty Association and the Canadian Union of Public Employees, Local 4207, also endorsed the motion.

[9] In December 2011, the University's Provost and Vice President, Academic (the "Provost"), convened a committee to investigate the allegations in the motions. In January 2012, the committee accepted written submissions and evidence and heard oral submissions from the respondent, the Department of Sociology, the Centre for Women and Gender Studies, and the Roman Catholic Chaplain (Br. Masseur). In a letter to the committee, the respondent complained that Br. Masseur had personally attacked her in an e-mail sent to his supporters in 2006, and, more recently, certain Catholic media linked to the Sodality of Christian Life have "scandalously attacked" her, because of her opposition to the SEA program.

[10] In his letter to the committee, Br. Masseur described the respondent as having "radical secular views" inspired by Karl Marx, which are not shared by all academics at the University. He also alleged that she had publicly accused him of promoting racism, sexism, homophobia, and sexual, physical and psychological abuse of youth, which, in his view, were "slanders" and not "freedom of speech".

[11] In his letter, Br. Masseur also denied that students on volunteer placements stay in accommodation run by the Sodalit Family, or that the Sodalit Family promotes or condones psychological or physical abuse. He admitted that there have been two cases of sexual misconduct committed by members of the Sodalit Family, but that the individuals involved represent 0.25% of the organization's religiously consecrated members over a 40-year period, and that their actions were repudiated by the

organization.

[12] Br. Masseur also stated that the Catholic Church has hundreds of thousands of members who spend their entire lives serving the poor and defending human dignity, and that religious organizations have been more effective and less corrupt in addressing poverty than secular or government-based organizations.

[13] In support of his arguments, Br. Masseur cited a study which found that the Sodalit Family is the most professional and effective non-governmental organization addressing poverty in Lima, Peru. He also provided the committee with 200 letters of support for the SEA program from professors, staff, alumni, and students.

[14] On January 26, 2012, the applicant filed a complaint with the University's Office of Human Rights and Equity Service ("OHRES"), which alleged that the respondent had harassed and discriminated against him because of his Catholic religious beliefs contrary to the University's Respectful Work and Learning Environment Policy ("RWLEP"). Specifically, he objected to the comments that the respondent made about him in the motion that she brought forth at a faculty meeting in the Department of Sociology, the explanatory letter that she circulated to various Departments of the University, and the presentation that she made to the committee which was convened by the Provost. He alleged that the main reason that the respondent was targeting him was because he is opposed to abortion and is pro-life. He stated that he has right to hold such beliefs in accordance with freedom of religion, and quoted Pope John Paul II, who stated:

I declare that direct abortion, that is abortion willed as an end or as a means, always constitutes a grave moral disorder, since it is the deliberate killing of an innocent human being.

[15] On January 27, 2012, the committee which was convened by the Provost released a report, which found that there was no compelling evidence to support severing the University's connection with the SEA program. Specifically, it found that no substantial evidence was presented that participation in the SEA program posed any

substantial or immediate risk to mature, consenting adults. However, the committee recommended that the application form for the SEA program should include a statement that the program is affiliated with the Christian Life Movement, which is affiliated with the Roman Catholic Church, and that although no religious affiliation is required for participation in the program, students might encounter others with an attachment to a variety of faith traditions.

[16] On February 10, 2012, the University's OHRES dismissed the applicant's complaint for the following reasons:

After reviewing the allegations in your complaint, it is determined that the allegations failed to demonstrate the required elements of discrimination, harassment, personal harassment or psychological harassment. In particular, a pattern of specific behaviours by the alleged respondent that are directed towards you specifically and which may be characterized as fitting the definitions under the RWLEP is not present. As the behaviour is currently described in your documentation, it is not vexatious as defined under the RWLEP. Rather, on the face of your documentation, the actions of the respondent may be characterized as a legitimate expression of her academic freedom and use of existing avenues for the hearing and resolution of her concerns.

[17] On April 4, 2012, the applicant filed an Application with the Tribunal, which alleged that the respondent discriminated against him with respect to employment because of his creed. His specific allegations may be summarized as follows:

- 1) The respondent proposed motions at meetings of the Centre for Women and Gender Studies and the Department of Sociology, which charged him with (a) racism, classism, homophobia, and sexism, and sexual, physical and psychological abuse of youth and women, and (b) using the University's academic programs and other resources for purposes other than the services of the Roman Catholic Chaplain.
- 2) The only proof that the respondent provided to substantiate her charges against him was his links to the Sodalit Family. He admitted that he has links to the Sodalit Family, but denied the truth of any of respondent's charges. In his view, the charges constituted harassment.
- 3) He believes that the respondent targeted him because he is a pro-life Catholic who is opposed to abortion, not because she is concerned

about the safety of students who participate in the SEA program. Specifically, he stated that the respondent discriminated against him because he believes “in the sacredness of life from conception to natural death.”

- 4) The University’s OHRES dismissed his complaint because its definition of discrimination is too narrow, and it has “a too broad notion of academic freedom that supports bullying.”

[18] According to the applicant, on April 27, 2012, the University’s OHRES re-opened the investigation into his complaint, and the investigation is ongoing.

[19] On May 14, 2012, the Tribunal issued a Case Assessment Direction, which directed that a summary hearing be held by teleconference to decide whether the Application should be dismissed on a preliminary basis because it has no reasonable prospect of success.

[20] On June 7, 2012, the Tribunal issued a Notice of Summary Hearing to the parties, which informed them that the hearing was scheduled for September 17, 2012.

[21] On September 7, 2012, the University filed a Request to Intervene to address whether the applicant was in an employment relationship with the University.

[22] On September 10, 2012, the respondent filed a Response to the Application, which denied that she was in an employment relationship with the applicant, and denied she had discriminated against the applicant because of his creed. Specifically, she stated that all of her activities which the applicant is complaining about involved the exercise of her protected right of freedom of expression in the context of the University. She stated that the applicant’s sensitivity to legitimate discussion and debate are not proof of harassment or discrimination, and that his Application is an attempt to silence opposition to his point of view, and stifle criticism of an organization to which he belongs.

[23] On September 17, 2012, the summary hearing took place as scheduled. The applicant and the University filed supporting documents in advance of the hearing. At

the hearing, I heard oral submissions from the applicant, and dismissed the Application with written reasons to follow. The following are my written reasons.

ANALYSIS

[24] Rule 19A of the Tribunal's Rules of Procedures provides for a summary hearing, following which an application may be dismissed, in whole or in part, if the Tribunal finds that there is no reasonable prospect that the application or part of the application will succeed. The approach to deciding whether an application has a reasonable prospect of success following a summary hearing was explained as follows in *Dabic v. Windsor Police Service*, 2010 HRT0 1994, at paras. 8-10:

In some cases, the issue at the summary hearing may be whether, assuming all the allegations in the application to be true, it has a reasonable prospect of success. In these cases, the focus will generally be on the legal analysis and whether what the applicant alleges may be reasonably considered to amount to a *Code* violation.

In other cases, the focus of the summary hearing may be on whether there is a reasonable prospect that the applicant can prove, on a balance of probabilities, that his or her *Code* rights were violated. Often, such cases will deal with whether the applicant can show a link between an event and the grounds upon which he or she makes the claim. The issue will be whether there is a reasonable prospect that evidence the applicant has or that is reasonably available to him or her can show a link between the event and the alleged prohibited ground.

In considering what evidence is reasonably available to the applicant, the Tribunal must be attentive to the fact that in some cases of alleged discrimination, information about the reasons for the actions taken by a respondent are within the sole knowledge of the respondent. Evidence about the reasons for actions taken by a respondent may sometimes come through the disclosure process and through cross-examination of the people involved. The Tribunal must consider whether there is a reasonable prospect that such evidence may lead to a finding of discrimination. However, when there is no reasonable prospect that any such evidence could allow the applicant to prove his or her case on a balance of probabilities, the application must be dismissed following the summary hearing.

[25] The Tribunal does not have the power to deal with general allegations of unfairness. For an Application to continue in the Tribunal's process, there must be a basis beyond mere speculation and accusations to believe that an applicant could show discrimination on the basis of one of the grounds alleged in the *Code*. See *Forde v. Elementary Teachers' Federation of Ontario*, 2011 HRTO 1389, at para. 17.

[26] In his submissions, the applicant stated that his Application has a reasonable prospect of success because it is evident that the respondent's campaign included horrendous claims against him personally, in particular, equating his pro-life beliefs with being against women. He stated that it is evident the respondent targeted him because he believes, for religious reasons, that life is sacred from conception to death, and he is "against the killing of innocent life."

[27] In support of his submissions, the applicant referred to the explanatory letter that the respondent allegedly circulated to various Departments of the University, and the other materials that he filed with the Tribunal.

[28] When I asked the applicant what his response was to the respondent's position that her activities are protected by academic freedom and freedom of expression, he responded that he is for academic freedom, but that it should include respect and tolerance. He stated that the respondent's activities were neither respectful nor tolerant towards him.

[29] When I asked the applicant to explain how the respondent's lack of respect or tolerance amounted to discrimination, he responded that she poisoned his workplace because she attacked him personally.

[30] I now turn to my analysis of whether the Application has a reasonable prospect of success. In my view, even if the applicant's factual allegations are true, the Application does not have a reasonable prospect of success because what he alleges cannot be reasonably considered to amount to a *Code* violation.

[31] The Application relates to section 5 of the *Code*, which prohibits discrimination because of creed with respect to employment, and harassment because of creed in the workplace. In his oral submissions, the applicant also stated that the Application relates to section 1 of the *Code*, which prohibits discrimination because of creed with respect to services.

[32] This case involves competing rights. The applicant has identified his right to be free from harassment and discrimination based on creed in the workplace or a service environment as the overriding value in this case. The respondent, on the other hand, has identified her right to academic freedom and freedom of expression as the overriding value in this case. In the applicant's view, however, the principles of academic freedom and freedom of expression should not be so broad as to allow the respondent to make statements about him which are disrespectful and intolerant and constitute bullying.

[33] The Tribunal has emphasized that ambiguity in the scope of *Code* rights should be resolved in favour of protecting matters at the core of the rights and freedoms in the *Canadian Charter of Rights and Freedoms*, Part I of the *Constitution Act, 1982*, being Schedule B to the *Canada Act, 1982* (U.K.), 1982, c. 11 (the "*Charter*"). See *Taylor-Baptiste v. Ontario Public Service Employees Union*, 2012 HRTO 1393; *Dallaire v. Les Chevaliers de Colomb*, 2011 HRTO 639; and *Whiteley v. Osprey Media Publishing*, 2010 HRTO 2152. In *Dallaire*, *supra*, the applicant, who was a member of the Catholic Church, alleged that the respondent discriminated against her with respect to services and facilities because it donated a monument with a pro-life inscription to a Catholic church, which displayed it on its property. In dismissing the Application, the Tribunal noted at para. 35 that the applicant was offended by the inscription on the monument because she strongly disagreed with the Catholic Church's beliefs regarding abortion. The Tribunal went on to state that attempting to use the *Code* as a vehicle to challenge not only the monument, but also the Catholic Church's belief system and teachings, was "not an appropriate use of the *Code*."

[34] Section 2(b) of the *Charter* recognizes that freedom of expression is a

fundamental freedom. In *R.W.D.S.U., Local 558 v. Pepsi-Cola Canada Beverages (West) Ltd.*, 1 SCR 156, the Supreme Court of Canada stated at para. 32:

The Court... has repeatedly reaffirmed the importance of freedom of expression. It is the foundation of a democratic society (see *R. v. Sharpe*, [2001] 1 S.C.R. 45, 2001 SCC 2; *R. v. Keegstra*, [1990] 3 S.C.R. 697; *R. v. Butler*, [1992] 1 S.C.R. 452). The core values which free expression promotes include self-fulfilment, participation in social and political decision making, and the communal exchange of ideas. Free speech protects human dignity and the right to think and reflect freely on one's circumstances and condition. It allows a person to speak not only for the sake of expression itself, but also to advocate change, attempting to persuade others in the hope of improving one's life and perhaps the wider social, political, and economic environment.

Furthermore, expression which is merely unpopular, distasteful or contrary to the mainstream, or merely offends, shocks or disturbs the State or any sector of the population, is protected by the guarantee of freedom of expression. See *Irwin Toy Ltd. v. Quebec (Attorney General)*, [1989] 1 SCR 927, at para. 41.

[35] With respect to academic freedom, it is well-established that courts and tribunals should be restrained in intervening in the affairs of a university in any circumstance where what is at issue is expression and communication made in the context of an exploration of ideas, no matter how controversial or provocative those ideas may be. See *Maughan v. UBC*, 2008 BCSC 14, aff'd 2009 BCCA 447, leave to appeal ref'd [2009] S.C.C.A. No. 526, at para. 493. However, the principle of academic freedom does not override an organization or person's obligations under the *Code*. In other words, academic freedom is not a license to discriminate against another person because of his or her religious beliefs. See *Ketenci v. Ryerson University*, 2012 HRTO 994, at para. 42. That said, in my view, given the importance of academic freedom and freedom of expression in a university setting, it will be rare for this Tribunal to intervene where there are allegations of discrimination in relation to what another person has said during a public debate on social, political, and/or religious issues in a university.

[36] The applicant's main allegation is that the respondent harassed him and poisoned his work environment because of his religious beliefs, specifically, his pro-life

beliefs. In his view, the fact the respondent's statements about him were public, personal, disrespectful, and intolerant, and were related to his religious beliefs, means that they were discriminatory under the *Code*.

[37] I disagree. The Catholic Church is one of the most powerful religious institutions in the world, and is sometimes criticized by both Catholics and non-Catholics for its views on contentious issues. Whether the applicant likes it or not, as a representative of the Catholic Church at the University, he may be criticized by others because of the Church's, and his own, views on these issues. Conversely, whether the respondent likes it or not, the Roman Catholic Chaplain and the applicant are allowed to express views criticizing the respondent and promoting the SEA program, even if some of the Catholic organizations which the program is partnered with hold views that the respondent finds offensive and discriminatory.

[38] In the case at hand, the respondent and some of her colleagues, on the one hand, and the Roman Catholic Chaplain and the applicant, on the other hand, have been involved in a heated social, political and religious debate with respect to the merits of having the SEA program at the University. Both sides have expressed strong views, which may be offensive to others, and have made personal criticisms about the other side to some extent. The Provost convened a committee, which heard from both sides, and released a report, which found that there was no compelling evidence to support severing the University's connection with the SEA program. However, the fact that the committee decided the issue in favour of the Roman Catholic Chaplain was not enough for the applicant. He is now asking this Tribunal to find that respondent's comments about him were discriminatory, and to order her to pay financial compensation to him.

[39] In my view, similar to *Dallaire, supra*, this is not an appropriate use of the *Code*. The respondent's proposed motions at two faculty meetings, the explanatory letter that she circulated to various Departments at the University, and her submissions to the committee convened by the Provost, expressed views on social, political, and religious issues, which fall within the core of the guarantee of freedom of expression in the *Charter*. Furthermore, this Tribunal's intervention into the debate that is taking place on

campus about the merits of the SEA program would likely have a chilling effect on freedom of expression whereby individuals would engage in self-censorship to avoid being named a respondent in a human rights Application.

[40] With respect to the applicant's allegation that the respondent violated the *Code*, the mere fact that the applicant found the respondent's views to be offensive and hurtful is not enough to find that they were discriminatory.

[41] Subsection 10(1) of the *Code* defines harassment as "a course of vexatious comment or conduct that is known or ought reasonably to be known to be unwelcome." Moreover, the *Code* is concerned with substantive discrimination, not merely differential treatment. In *McGill University Health Centre (Montreal General Hospital) v. Syndicat des employés de l'Hôpital général de Montréal*, [2007] 1 S.C.R. 161, Abella J. stated at para. 49:

(...) there is a difference between discrimination and a distinction. Not every distinction is discriminatory. It is not enough to impugn an employer's conduct on the basis that what was done had a negative impact on an individual in a protected group. Such membership alone does not, without more, guarantee access to a human rights remedy. It is the link between that group membership and the arbitrariness of the disadvantaging criterion or conduct, either on its face or in its impact, that triggers the possibility of a remedy. And it is the claimant who bears this threshold burden.

[42] In the case at hand, the respondent publicly alleged within the University that the SEA program was affiliated with "far-right", "cult like" Catholic organizations which have a record of actively opposing abortion rights, women's rights, gay and lesbian rights, liberation theology, and other progressive causes, and of physically, psychologically and sexually abusing youth. She also alleged that these organizations had links with the Roman Catholic Chaplain at the University, specifically, Br. Masseur and the applicant. She further alleged that Br. Masseur and the applicant had used the University's academic programs, resources, and institutional credibility to recruit students for the SEA program. In the respondent's view, the University, which is a publicly-funded, secular organization, should only support volunteer abroad programs

which are secular.

[43] I find that the respondent's statements do not constitute harassment under the Code. Although the respondent clearly treated the applicant differently because of his religious beliefs, in the context of the debate that was taking place within the University about the merits of the SEA program, which the applicant had administered and continues to support, I cannot see how the respondent's comments about him were vexatious, or known or ought reasonably to be known to be unwelcome, no matter how personally offensive and hurtful he found them to be. Accordingly, the respondent's comments did not amount to substantive discrimination.

[44] In her Response, the respondent also stated that the Application should be dismissed because the applicant was not in an employment relationship with her. Similarly, in its Request to Intervene, the University stated that the applicant is not, and has never been, in an employment relationship with the University. In view of my findings above, it is not necessary to address whether the applicant was in an employment or service relationship with the respondent or the University because, even if he was, the Application has no reasonable prospect of success.

[45] In conclusion, I want to make it clear that my dismissal of the Application is not an endorsement of the respondent's statements about the merits of the SEA program. My decision should not be misconstrued as supporting either side of the debate on this issue.

ORDER

[46] The Application is dismissed.

Dated at Toronto, this 9th day of October, 2012.

"Signed by"

Ken Bhattacharjee
Vice-chair